

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Queens

Index No.: _____

Date Purchased: _____

SUMMONS

-----X
STEPHEN TRIPP,

Plaintiff,

Plaintiff designates Queens
County as the place of trial.

vs.

The basis of venue is:
Place of Occurrence

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE EZEQUIEL GUTIERREZ and
DETECTIVE JOHN DOE of the 110th PRECINCT,,

Defendants.

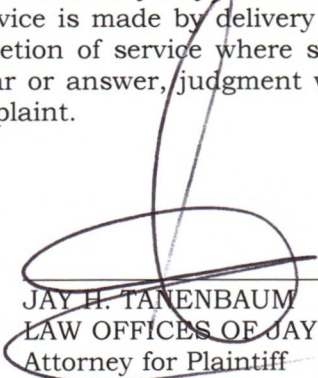
Plaintiff resides at:
98-17 Horace Harding
Expressway
Queens, N.Y. 11368

-----X County of Queens

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 22, 2020


JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-19J-0090

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

DETECTIVE EZEQUIEL GUTIERREZ
c/o 110th Precinct
94-41 43rd Avenue
Elmhurst, New York 11373

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF Queens

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STEPHEN TRIPP,

VERIFIED COMPLAINT

Plaintiff,

vs.

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE EZEQUIEL GUTIERREZ and
DETECTIVE JOHN DOE of the 110th PRECINCT,,

Defendants.
-----X

Plaintiff, by his attorney, **Law Offices of Jay H. Tanenbaum**, complaining of the
Defendants, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States of America

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, AND THE FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION.

3. This Court has jurisdiction over each federal claim pursuant to concurrent jurisdiction.

VENUE

4. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in Queens County in the State of New York.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

6. Plaintiff, Stephen Tripp, is, and has been, at all relevant times, a resident of Queens County, City and State of New York.

7. Defendant, The City of New York, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, New York City Police Department, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, The City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

10. That at all times hereinafter mentioned, defendant, Detective Ezequiel Gutierrez, was and still is employed with defendant, New York City Police Department.

11. That at all times hereinafter mentioned, defendant, Detective John Doe, was and still is employed with defendant, New York City Police Department.

12. That prior hereto on October 8, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

13. That a hearing was held by the defendant, The City of New York, pursuant to Municipal Law 50-h on August 21, 2020.

14. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

FACTS

15. On July 17, 2019, at approximately 10:30 p.m., plaintiff, Stephen Tripp, was lawfully on premises known as 98-17 Horace Harding Expressway, and in particular, Apartment 17L, in the County of Queens, City and State of New York.

16. At that time, Defendants, Detective Ezequiel Gutierrez and Detective John Doe arrived at the location on duty and in plain clothes attires.

17. Without any legal justification or excuse, the defendants, Detective Ezequiel Gutierrez and Detective John Doe, unlawfully interrogated, searched the premises and arrested the plaintiff.

18. No search warrant for the premises was shown or served upon the Plaintiff.

19. Plaintiff was not engaged in any unlawful or suspicious activity.

20. Nonetheless Plaintiff was interrogated and his premises searched without a warrant by Defendants, Detective Ezequiel Gutierrez and Detective John Doe without any legal justification or excuse.

21. Nonetheless, the plaintiff was arrested.

22. At no time on July 17, 2019, did Plaintiff commit or violation of the law.

23. At no time on July 17, 2019, did defendants possess probable cause to arrest the Plaintiff.

24. At no time on July 17, 2019, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff.

25. As a result of the foregoing, Plaintiff, Stephen Tripp, sustained emotional and psychological distress and his constitutional rights.

26. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.

27. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of Defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.

29. Defendants, collectively and individually, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CLAIM FOR RELIEF AGAINST INDIVIDUALLY NAMED DEFENDANTS FOR FALSE ARREST AND FALSE IMPRISONMENT UNDER FEDERAL LAW, PURSUANT TO 42 U.S.C. §1983.

30. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

31. As a result of the Defendants' conduct, Plaintiff was subjected to illegal, improper and false arrest, taken into custody, caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

32. As a result of the foregoing, Plaintiff's liberty was restricted, he was put in fear of his safety and he was falsely arrested without probable cause.

SECOND CLAIM FOR RELIEF FOR MUNICIPAL LIABILITY UNDER 42 U.S.C §1983

33. Plaintiff repeats, reiterates and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

34. Defendants interrogated and searched the Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search and interrogation would jeopardize Plaintiff's liberty, well-being, safety and violate his constitutional rights.

35. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of the defendants, The City of New York and New York City Police Department, all under the supervision of ranking officers of said department.

37. The foregoing customs, polices, usages, practices and procedures and rules of defendants, The City of New York and New York City Police Department, were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

38. Defendant, The City of New York, has grossly failed and train and adequately supervise its police officers in the fundamental of law of interrogation and search where an individual, especially as here, has not committed a crime.

39. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

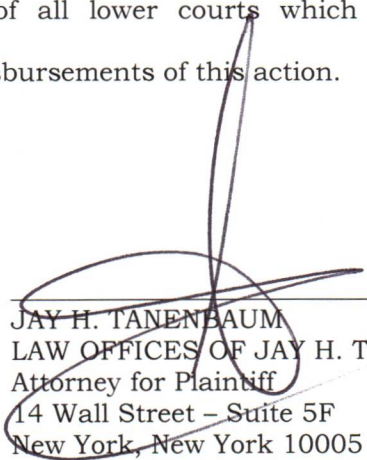
40. That as a result of the foregoing, Plaintiff Stephen Tripp was caused to sustain serious injuries and to have suffered pain, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries, Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable

to perform Plaintiff's normal activities and duties and has sustained a resultant loss therefrom.

41. That as a result of the foregoing, Plaintiff Stephen Tripp was damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
September 22, 2020



JAY H. TANENBAUM
LAW OFFICES OF JAY H. TANENBAUM
Attorney for Plaintiff
14 Wall Street - Suite 5F
New York, New York 10005
(212) 422-1765
Our File No. 555-19J-0090

INDIVIDUAL VERIFICATION

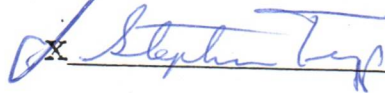
STATE OF NEW YORK

ss:

COUNTY OF NEW YORK

Stephen Tripp, being duly sworn, says:

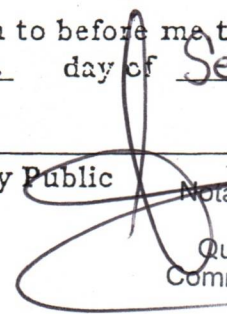
I am a Plaintiff in the action herein: I have read the annexed complaint/
~~bill of particulars~~ and know the contents thereof, and the same are true to my
knowledge, except those matters therein which are stated to be alleged upon
information and belief, and as to those matters I believe them to be true. My
belief as to those matters therein not stated upon knowledge, is based upon
facts, records, and other pertinent information contained in my personal files.

X Stephen Tripp

Sworn to before me this

22nd day of September, 2020

Notary Public


JAY H. TANENBAUM
Notary Public, State of New York
No. 02TA5028657
Qualified in New York County
Commission Expires June 6, 2022

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

STEPHEN TRIPP,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE
EZEQUIEL GUTIERREZ and DETECTIVE JOHN DOE of the 110th PRECINCT,,

Defendants.

SUMMONS AND COMPLAINT

TO:

LAW OFFICES OF JAY H. TANENBAUM

Attorney for Plaintiff

14 Wall Street - Suite 5F

New York, New York 10005

Tel No.: (212) 422-1765

Fax No.: (212) 425-7492

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certified that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Wednesday, September 23, 2020

Signature

Print Signors Name LAW OFFICES OF JAY H. TANENBAUM